TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

APPLICATIONS FOR PERMITS TO CONSTRUCT OR CHANGE LOCAL CHANNEL STANDARD BROADCAST STATIONS

SUPPLEMENTAL STATEMENT OF POLICY

Upon consideration of a report and recommendation of its Committee on Critical Radio Materials, the Commission, on August 10, 1943, determined that under certain stated conditions it would be in the public interest to grant applications for permits involving the use of idle equipment to increase power of 100-watt local channel standard broadcast stations to 250 watts and for construction of new 100-watt or 250-watt local channel stations.

Applications for permits to construct new 100-watt and 250-watt local channel standard broadcast stations in cities or towns where no station is located at present and not located in metropolitan districts already served by radio stations, and applications to increase power of local channel stations to 250 watts may be granted upon a satisfactory showing that:

1. All required materials, except vacuum tubes, may be obtained without priority assistance.[1]

2. Such applications involve no inconsistencies with the Commission's Rules and Regulations.

3. Such applications tend toward a fair, efficient and equitable distribution of radio service, are consistent with sound allocation principles, offer substantial improvement in standard broadcast service, and

4. Such applications are otherwise in the public interest.

Applications for local channel stations or changes in such stations which have been dismissed without prejudice pursuant to the policies announced February 23, 1942 and April 27, 1942, may be reinstated for consideration in the light of the new circumstances upon submission of a petition within thirty days of this date showing (1) that such application is in conformity with the foregoing enumerated conditions; and (2) any and all changes with respect to facts and circumstances as represented in the original application.

Dated: August 10, 1943.

By the Commission.

[SEAL] T. J. SLOWIE,
Secretary.

[F. R. Doc. 43-13846; Filed, August 24, 1943; 11:19 a. m.]

[1] The Commission is informed by the War Production Board that building construction, requires a clearance which may be obtained only when that agency is satisfied that a direct contribution toward winning the war is clearly indicated.

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter II—Office of Defense Transportation

[Special Direction ODT 7, Rev.-2, Amdt. 1]

PART 522—DIRECTION OF TRAFFIC MOVEMENT—EXCEPTIONS, PERMITS AND SPECIAL DIRECTIONS

MOVEMENT OF TRAFFIC IN RAILWAY TANK CARS

Pursuant to Executive Order 8989, the first paragraph of § 522.901 of Special Direction ODT 7, Revised-2 (8 F.R. 10446) is hereby amended to read as follows:

§ 522.901 *Loading of tank cars.* Unless authorized by a general or special permit issued by the Office of Defense Transportation, specifically authorizing a departure from the loading requirements of Special Direction ODT 7, Revised-2, or Special Direction ODT 7, Revised-2, as amended, no person shall offer for shipment and no carrier shall accept for shipment, forward, or transport any tank car containing any commodity unless the commodity is loaded in such tank car in accordance with one of the following requirements:

* * * * *

(E.O. 8989, 6 F.R. 6725)

This Amendment 1 to Special Direction ODT, Revised-2 shall become effective on September 1, 1943.

Issued at Washington, D. C., this 25th day of August 1943.

A. V. BOURQUE,
Associate Director, Division of Petroleum and Other Liquid Transport.

[F. R. Doc. 43-13852; Filed, August 25, 1943; 11:05 a. m.]

TITLE 50—WILDLIFE

Chapter IV—Office of the Coordinator of Fisheries

[Order 1838; Area Coordinator's Gen. Direction 1]

PART 401—PRODUCTION OF FISHERY COMMODITIES OR PRODUCTS

FISHING VESSELS IN MONTEREY, SAN FRANCISCO PORTS

§ 401.2 *Coordinated Pilchard Production Plan.* * * *

Pursuant to the order entitled "Coordinated Pilchard Production Plan" (8 F.R. 9233), being Order No. 1838 of the Secretary of the Interior, and because I deem it necessary, in order to contribute to the maximum production of pilchard products and in order to effectuate the purposes of Order No. 1838, that provision be made for directing deliveries of pilchards from fishing vessels to particular persons, as contemplated by paragraph (i) of that order, I hereby issue the following direction for the observance of which the permittee shall be responsible:

A. Each time a pilchard fishing vessel enters the harbor at either one of the two fishing ports named below to deliver a catch of pilchard (sardines), its fishing captain shall report to the Port Supervisor of the Office of Coordinator of Fisheries or, in his absence, to the Assistant Port Supervisor of the port, and receive directions as to the delivery of the catch. At San Francisco, the Port Supervisor, or his Assistant, will be found adjacent to the St. Francis Yacht Club Harbor; at Monterey the Port Supervisor, or his Assistant, will be found at Naval Center Monterey Breakwater.

B. The catch shall be at once delivered according to the directions of the Port Supervisor or his Assistant.

Issued July 30, 1943.

O. E. SETTE,
Area Coordinator, Area II.

[F. R. Doc. 43-13850; Filed, August 25, 1943; 10:35 a. m.]

[Order 1838; Area Coordinator's Gen. Direction 2]

PART 401—PRODUCTION OF FISHERY COMMODITIES OR PRODUCTS

FISHING VESSELS IN PORT OF MONTEREY

§ 401.2 *Coordinated Pilchard Production Plan.* * * *

Pursuant to paragraph (n) of the order entitled "Coordinated Pilchard Production Plan" (8 F.R. 9233), being Order No. 1838 of the Secretary of the Interior, and because I deem it necessary to accomplish the purposes of that order, I hereby issue the following general direction, for the observance of which by the fishing captain of any particular vessel the permittee thereof shall be responsible:

A. General Direction No. 1, issued July 30, 1943, shall not apply to vessels acting under directions issued pursuant to paragraph B. below.

B. The fishing captain of any vessel fishing from the port of Monterey in accordance with a permit properly granted, may be directed by the Port Supervisor or the Assistant Port Supervisor for that port to make deliveries during a specified period at Moss Landing. During that period the fishing captain shall deliver all catches according to the directions thus given: *Provided*, That if he shall find, upon attempting delivery of a particular catch at Moss Landing, that the conditions of sea, tide or weather make such delivery unduly hazardous, he shall report to the Port Supervisor for Monterey or his Assistant, at the Naval Center, Monterey Breakwater, receive directions for delivery of the catch, and shall deliver it accordingly.

Issued August 7, 1943.

O. E. SETTE,
Area Coordinator, Area II.

[F. R. Doc. 43-13851; Filed, August 25, 1943; 10:35 a. m.]

Notices

DEPARTMENT OF THE INTERIOR.

General Land Office.

[Public Land Order 159]

Correcting land description in Executive Order No. 9311 of March 6, 1943,

enlarging the Squaw Creek National Wildlife Refuge, Missouri.

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, (8 F.R. 5516) it is ordered as follows:

The designation "N½SE¼" occurring in the last section of the land description contained in Executive Order No. 9311 of March 6, 1943 (8 F.R. 2913) enlarging the Squaw Creek National Wildlife Refuge, in Missouri, is hereby corrected to read "N½SW¼".

ABE FORTAS,
Acting Secretary of the Interior.

AUGUST 17, 1943.

[F. R. Doc. 43-13894; Filed, August 25, 1943; 10:20 a. m.]

[Public Land Order 160]

ENLARGING THE BOMBAY HOOK NATIONAL WILDLIFE REFUGE, DELAWARE

By virtue of the authority vested in the President and in order to effectuate further the purposes of the Migratory Bird Conservation Act, 45 Stat. 122 (U.S.C., title 16, secs. 715-715r), and pursuant to Executive Order No. 9337 of April 24, 1943, (8 F.R. 5516), *It is ordered*, as follows:

Subject to valid existing rights, the following-designated tracts of land in Kent County, Delaware, acquired by the United States under the authority of Title VII of the act of June 15, 1935, 49 Stat. 384, for wildlife-conservation purposes, are hereby reserved and set apart for the use of the Department of the Interior as a part of the Bombay Hook National Wildlife Refuge:

No. tract and acres	*No. tract and acres*	*No. tract and acres*
11e---- 57.36	11m---- 20.14	56e---- 7.37
11f---- 5.49	56a ----129.20	59 ----229.17
11g---- 4.48	56b ---- 12.84	59a---- 62.32
11h---- 7.60	56c ---- 1.48	61 ---- 3.52
11k----977.32	56d ---- 37.06	62 ---- 77.88

The above-listed tracts, aggregating 1,633 acres, are shown upon a Fish and Wildlife Service map entitled "Bombay Hook National Wildlife Refuge," dated April 24, 1943, filed in the records of the Fish and Wildlife Service at Chicago, Illinois, and hereby made a supplement to this public land order.

ABE FORTAS,
Acting Secretary of the Interior.

AUGUST 17, 1943.

[F. R. Doc. 43-13895; Filed, August 25, 1943; 10:20 a. m.]

DEPARTMENT OF LABOR.

Wage and Hour Division.

[Administrative Order 213]

BAKERY, BEVERAGE, AND MISCELLANEOUS FOOD INDUSTRIES

APPOINTMENT OF INDUSTRY COMMITTEE

1. By virtue of and pursuant to the authority vested in me by the Fair Labor Standards Act of 1938, I, L. Metcalfe Walling, Administrator of the Wage and Hour Division, United States Department of Labor, do hereby appoint and convene for the Bakery, Beverage, and Miscellaneous Food Industries (as such industry is defined in paragraph 2) an industry committee composed of the following representatives:

For the public: Clarence Updegraff, Chairman, Iowa City, Iowa, Glen E. Carlson, Redlands, California, J. Frederic Dewhurst, New York, New York, Alva W. Taylor, Nashville, Tennessee, Colston E. Warne, Amherst, Massachusetts.

For the employers: Fred L. Cobb, Green Bay, Wisconsin, R. H. Jennings, Jr., Orangeburg, South Carolina, Thomas F. Mansfield, Newark, New Jersey, J. Frank Rushton, Jr., Birmingham, Alabama, C. H. Wortz, Fort Smith, Arkansas.

For the employees: Edward H. Crawford, Newport, Kentucky, James Cross, Chicago, Illinois, David Kaplan, Washington, D. C., Andrew W. Myrup, Washington, D. C., Joseph Obergfell, Cincinnati, Ohio.

Such representatives have been chosen with due regard to the geographical regions in which such industry is carried on.

2. For the purpose of this order the term "Bakery, Beverage, and Miscellaneous Food Industries" means:

The manufacture or packaging of bakery products, beverages, ice, and miscellaneous food products and preparations.

a. It includes, but without limitation, bread, pastries, crackers, and pretzels; macaroni and other alimentary pastes; alcoholic and nonalcoholic beverages; natural, mineral, and carbonated waters; malt; baking powder, yeast, and other leavening compounds; corn syrup and corn sugar; starch; ice (including the harvesting of natural ice); coffee and tea; spices; ready-to-mix desserts with corn starch, tapioca, or gelatin bases; and potato chips.

b. *Provided, however,* That the definition shall not include any product the manufacture of which is covered by the definition of an industry for which the Administrator has already issued a wage order or appointed an industry committee.

3. The definition of the Bakery, Beverage, and Miscellaneous Food Industries covers all occupations in the industry which are necessary to the production of the articles covered by the definition, including clerical, maintenance, shipping and selling occupations: *Provided, however,* That the definitions does not cover (a) such clerical, maintenance, shipping and selling occupations when carried on in a wholesaling or selling department, physically segregated from other departments of an establishment, the greater part of the sales of which wholesaling or selling department are sales of articles which are resold in the form in which purchased; and (b) employees engaged exclusively in clerical, maintenance, selling or shipping operations on articles purchased for resale in the form in which purchased; and *Provided further,* That where an employee covered by this definition is employed during the same workweek at two or more different minimum rates of pay, he shall be paid the highest of such rates for such workweek unless records concerning his employment are kept by his employer in accordance with applicable regulations of the Wage and Hour Division.

4. Any person who, in the opinion of the committee, having a substantial interest in the proceeding and who is prepared to present material pertinent to the question under consideration, may, with the approval of the committee, appear on his own behalf or on behalf of any other person. Moreover, any interested person may submit in writing pertinent data to the committee either through the Administrator or through the chairman of the committee.

5. The industry committee herein created shall meet at 10:00 a. m. on September 14, 1943 in Room 1001, 165 West 46th Street, New York, New York, and, in accordance with the provisions of the Fair Labor Standards Act of 1938 and rules and regulations promulgated thereunder, shall proceed to investigate conditions in the industry and recommend to the Administrator minimum wage rates for all employees thereof who, within the meaning of said Act, are "engaged in commerce or in the production of goods for commerce," excepting employees exempted by virtue of the provisions of section 13 (a) and employees coming under the provisions of section 14.

Signed at New York, New York, this 21st day of August, 1943.

L. METCALFE WALLING,
Administrator.

[F. R. Doc. 43-13820; Filed, August 24, 1943; 2:16 p. m.]

OFFICE OF ALIEN PROPERTY CUSTODIAN.

[Vesting Order 1993]

TRUST UNDER WILL OF MORRIS J. BLUEN

In re: Trust under the will of Morris J. Bluen, deceased; File D-28-1854; E. T. sec. 1493.

Under the authority of the Trading with the Enemy Act, as amended, and Executive Order 9095, as amended, and pursuant to law, the Alien Property Custodian after investigation,

Finding that—

(1) The property and interests hereinafter described are property which is in the process of administration by Johanna Bluen, as trustee, and the Fifth Avenue Bank of New York, as substitute trustee, acting under the judicial supervision of the Surrogate's Court, New York County, New York;

(2) Such property and interests are payable or deliverable to, or claimed by nationals of a designated enemy country, Germany, namely,

Nationals and Last Known Address

Max Bluen, Germany.
George Bluen, Germany.
Franz Bluen, Germany.
Herta Bluen-Brettschneider, Germany.
Alice Bluen Bender, Germany.
Hedwig K. Neuburger, Germany.
And the descendants of each of them whose names are unknown, Germany.

And determining that—

(3) If such nationals are persons not within a designated enemy country, the national interest of the United States requires that such persons be treated as nationals of a designated enemy country, Germany; and

Having made all determinations and taken all action, after appropriate consultation and certification required by said Executive Or-